

26NNCV01612 26NNCV01612

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Case Number: 26NNCV01612 Hearing Date: August 14, 2026 Dept: D

TENTATIVE RULING

Calendar: 12

Date: August 14, 2026

Case No: 26NNCV01612 Trial Date: Not yet set

Case Name: Vignali, et al. v. Deforest, et al.

MOTION TO STRIKE

[CCP § 436]

Moving Party: Defendants, Paul Deforest, Roslyn Deforest, Paul Deforest and Roslyn Deforest, Trustees of the Deforest Family Trust dated March 21, 2022

Responding Party: Plaintiffs, Brittany Vignali, Charlene Denise Carrillo, and Ismael Montano

RELIEF REQUESTED:

Strike the claims for punitive damages.

CAUSES OF ACTION: from Complaint

1) Breach of Contract

2) Breach of Implied Warranty of Habitability

- 3) Nuisance
- 4) Negligence
- 5) Intentional Infliction of Emotional Distress
- 6) Wrongful Eviction
- 7) Violation of Civil Code § 1942.4
- 8) Violation of the Los Angeles Tenant Anti-Harassment Ordinance

SUMMARY OF FACTS:

This case is a habitability action arising from Plaintiffs' tenancy in real property located at 453 W. Palm Avenue, Monrovia, CA 91016. Defendants Paul Deforest and Roslyn Deforest, in their individual capacities and as Trustees of the Deforest Family Trust, own/manage the property. The Complaint alleges that throughout the tenancy, they experienced insect, vermin and rodent infestations, visible mold growth, general dilapidation or improper maintenance, deteriorated or inadequate foundations, defective or lack of weather protection of exterior wall coverings, and broken, rotted, split or buckled exterior wall or roof coverings.

Plaintiffs allege that despite repeatedly notifying Defendants of the conditions, Defendants failed and refused to maintain the subject property and to make the necessary repairs to keep the property in a safe, habitable and clean condition.

ANALYSIS:

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (a) strike out any irrelevant, false, or improper matter inserted in any pleading; or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP § 436, subds. (a), (b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civil Code, § 3294, subd. (a).) "Malice" is defined as conduct intended to cause injury to a person or despicable conduct carried on with a willful and conscious disregard for the rights or safety of others. (*Turman v. Turning Point of Cent. Cal., Inc.* (2010) 191 Cal.App.4th 53, 63.) "Oppression" means despicable conduct subjecting a person to cruel and unjust hardship, in conscious disregard of the person's rights. (Id.) "Fraud" is an intentional misrepresentation, deceit, or concealment of a material fact known by defendant, with intent to deprive a person of property, rights or otherwise cause injury. (Id.) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (*Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1042.)

Defendant moves to strike the following portions of the Complaint:

- 1) Page 9, paragraph 47, "DEFENDANTS' actions were oppressive and malicious within the meaning of Cal. Civ. Code § 3294 in that they have intentionally, and in conscious disregard for health and safety, subjected the PLAINTIFFS to cruel and

unjust hardship by causing them to unreasonably live with the substandard and dangerous CONDITIONS at the SUBJECT PROPERTY thereby entitling the PLAINTIFFS to an award of punitive damages.”

2) Page 11, paragraph 60, “DEFENDANTS’ actions were oppressive and malicious within the meaning of Cal. Civ. Code § 3294 in that they have intentionally, and in conscious disregard for health and safety, subjected the PLAINTIFFS to cruel and unjust hardship by causing them to unreasonably live with the substandard and dangerous CONDITIONS at the SUBJECT PROPERTY thereby entitling the PLAINTIFFS to an award of punitive damages.”

3) Page 12, paragraph 66, “DEFENDANTS’ actions were oppressive and malicious within the meaning of Cal. Civ. Code § 3294 in that they have intentionally and/or recklessly caused the PLAINTIFFS to be wrongfully evicted from the SUBJECT PROPERTY thereby entitling the PLAINTIFFS to an award of punitive damages.”

4) Page 13, prayer for relief, paragraph 3, “For punitive damages in an amount to be proven at trial.”

Defendants argue that Plaintiffs do not state sufficient specific evidentiary facts to entitle Plaintiffs to punitive damages. Defendants assert that Plaintiffs punitive damages allegations in the third, fifth, and sixth causes of action arise from alleged habitability issues and Defendants’ failure to remediate them. (Mot., pp. 7: 26-9:19.) Defendants argue that these allegations do not constitute conduct intended to cause injury or despicable conduct carried on with a willful or conscious disregard of Plaintiffs’ rights or safety. (Mot., pp. 7:26-9:19.)

In the opposition, Plaintiffs argue that a “conscious disregard of the rights of others which inevitably creates a potentially injury-producing risk can be a sufficient basis” for punitive damages. (Opp., p. 4:13-14.)

California courts repeatedly have recognized that punitive damages may be recovered in tort actions arising from habitability violations. Plaintiffs reference *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, in which the Court of Appeal found the trial court had abused its discretion in granting a motion for judgment on the pleadings with respect to a tenant’s claim for punitive damages against her landlords. (Id., at 920.) There, the Court of Appeal stated that a plaintiff may recover exemplary damages “when the landlord’s conduct justifies the award.” (Id. at 926.)

The tenant in *Stoiber* alleged numerous defective and dangerous conditions including, but not limited to, “leaking of sewage from the bathroom plumbing; defective and dangerous electrical wiring; structural weaknesses in the walls; deteriorated flooring; falling ceiling; leaking roof; dilapidated doors; broken windows; and other unsafe and dangerous conditions.” (*Stoiber*, supra, 101 Cal.App.3d at p. 912.) Also attached to the complaint in *Stoiber* was a copy of the health department’s notice to the landlord to vacate and demolish the premises which listed the following violations, among others: “heavy cockroach infestation, broken interior walls, broken deteriorated flooring on front porch, falling ceiling, deteriorated, overfused electrical wiring, lack of proper plumbing connection to sewage system in bathroom, sewage under bathroom floor, leaking roof, broken windows, and fire hazard.” (Ibid.) The tenant in *Stoiber* alleged that “she had repeatedly notified both Irene Honeychuck and Ron Perkins (an employee of Frank P. Smith Realty and Management) of defective conditions, and that no effort was made to repair the defects.” (Id. at p. 913.) This presentation was sufficient to allege that the landlord had actual and constructive knowledge of the defective conditions and failed to correct them.

Here, the Complaint alleges that from approximately 2018 through the duration of Plaintiffs’ tenancy, Plaintiffs experienced mold inside the subject property. Specifically, Plaintiffs allege that “[w]ater repeatedly entered the interior walls, insulation became saturated and black mold developed in multiple areas.” (Compl., ¶ 15.) The Complaint alleges that instead of remediating the mold, Defendants “painted over the mold in the restroom, concealing, rather than correcting the condition” and that the “mold condition remained ongoing and unresolved throughout Plaintiffs’ tenancy.” (Compl., ¶ 16.) The Complaint alleges that the property had a leaking roof, broken windows, broken doors, holes in the walls, defective plumbing, broken pipes, and inoperable light switches and electrical outlets. (Compl., ¶¶ 17-18.) Plaintiffs allege that despite reporting these issues to Defendants more than 10 times, the conditions were not repaired. (Compl., ¶¶ 17-18.) The Complaint further alleges that since 2023, Plaintiffs experienced a rat infestation inside the property and that when Plaintiffs informed Defendants about the rats, Defendants dismissed the concerns asserting that “it’s not a big deal.” (Compl., ¶ 23.) Lastly, the Complaint alleges that in June 2025, a City of Monrovia Code Enforcement Officer inspected the property and noted various

violations which were reported to the Defendants. (Compl., ¶ 24.)

The Court finds that, if proven true, the foregoing allegations would be sufficient to support an award of punitive damages. The Complaint adequately alleges that the Defendants had actual and constructive knowledge of the defective conditions yet failed to take reasonable steps to correct them. These allegations are materially similar to those in *Stoiber*, in which the Court of Appeal found comparable allegations were sufficient to support a claim for punitive damages against a plaintiff's landlords.

Thus, the motion to strike is DENIED.

RULING:

Defendants Paul Deforest, Roslyn Deforest, and Paul Deforest and Roslyn Deforest as Trustees of the Deforest Family Trust dated March 21, 2022's Motion to Strike is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.